

File No.: EXP202211236

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant), on August 1, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against the TOWN HALL OF CAMARGO with NIF P3901600A (hereinafter, the complained party), regarding the installation of a video surveillance system located at LUDOTECA DE IGOLLO (CALLE LAS ESCUELAS 28, IGOLLO DE CAMARGO, CAMARGO, CANTABRIA), with indications of a possible violation of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

The complainant states that in a premises for which the complained Local Administration is responsible, video surveillance cameras have been installed that are not properly signposted with the required informative signs of the monitored area. He notes that he has requested access to the images from this system related to July 12, 2022.

He provides images of the camera locations and an email dated July 12, 2022, sent to the email address protecciondedatos@aytocamargo.es.

The documents provided are:

- Communications exchanged between the complainant and the camera manager
- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was received by the manager on September 2, 2022, according to the certificate in the file.

No response has been received to this forwarding letter.

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THIRD: On October 20, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On December 16, 2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: After notifying the aforementioned initiation agreement in accordance with the rules established in the LPACAP, the complained party submitted a written statement in which, in summary, stated that: On November 15, 2022, a communication from the director of the A.E.P.D. was received, which conveyed the inadmissibility of the complaint filed by Mr. A.A.A. (EXP. ***NUMBER.1).

Clarification is requested regarding the initiation agreement of the sanctioning procedure, due to the complaint filed, since the Town Hall sent the required documentation to the A.E.P.D. justifying that the cameras located in the ludoteca of Igollo were out of service, according to a report from the company SERTEC SEGURIDAD, which was sent at the time, "and which determined the inadmissibility of the complaint."

Attached is the SERTEC report dated September 19, 2022, which indicates that: In the CCTV installation, the cameras have been oriented, but the system has not been set to record since the "legalization" of the system by the Town Hall of Camargo has not been carried out. Images are not transmitted, not even live, since there are no communications available. Signs have not been placed since this is usually done by Town Hall staff when the cameras are activated.

The SERTEC report indicates that on September 8, 2022, SERTEC technical personnel approached the facilities, after being given the keys, and confirmed that the recorder was stopped and that there were still no communications in the installation.

SIXTH: On March 31, 2023, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection impose on the TOWN HALL OF CAMARGO, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a warning sanction, and order the TOWN HALL OF CAMARGO to, pursuant to Article 58.2.d) of the GDPR, within ten working days, prove that it has proceeded to place the informative device in the areas where the cameras are located, positioning this device in a sufficiently visible place, both in open and closed spaces.

SEVENTH: On April 14, 2023, the complained party submitted allegations to the resolution proposal, stating:

The facts causing this warning consist of the installation of video surveillance cameras in a public building, specifically in the ludoteca of Igollo, which are not properly signposted with the required informative signs of the monitored area, although it should be noted that these cameras had not been subject to the corresponding installation in order to be able to

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to operate, pending the installation at the moment that the corresponding administrative authorization is obtained.

The obtaining of said administrative authorization is currently pending processing before the competent authority.

Regarding the placement of informational devices in the areas where the cameras are installed, this will proceed at the moment that the corresponding administrative authorization is obtained and the cameras are put into operation.

From the actions carried out in the present procedure and the documentation in the file, the following have been established:

PROVEN FACTS

FIRST: The claiming party states that in a premises for which the claimed Local Administration is responsible, surveillance cameras have been installed that are not properly signposted with the required informational signs for the monitored area.

It provides images of the location of the cameras.

SECOND: The claimed party, in its allegations to the initiation agreement, submits the SERTEC Report of September 19, 2022, which indicates: In the installation of CCTV, the cameras have been oriented, but the system has not been set to record since the "legalization" of the system by the Camargo City Council has not been carried out. Images are not transmitted, not even live, since there are no communications available. Signs have not been placed since this is usually done by City Council staff when the cameras are activated.

On September 8, 2022, SERTEC technical personnel approached the facilities, following the handover of the keys, and confirmed that the recorder is stopped and that there are still no communications in the installation.

THIRD: The claimed party states, in its allegations to the resolution proposal, that the placement of informational devices in the areas where the cameras are installed will proceed at the moment that the corresponding administrative authorization is obtained and the cameras are put into operation.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and

guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to Allegations

In response to the allegations presented by the claimed party, the following should be noted:

Upon examining the allegations of the claimed party, these allegations are not accepted, as they do not indicate the placement of the informational device in the areas where the cameras are located.

The communication dated 15/11/2022 was an inadmissibility corresponding to another procedure.

EXP***NUMBER.1 (AT/045XX/202X) for the alleged failure to comply with the right provided for in Article 15 of the GDPR.

The SERTEC report and the allegations of the claimed party confirm that the cameras are not activated and that the placement of informational devices in the areas where the cameras are installed will not be carried out until the corresponding administrative authorization is obtained and the cameras are put into operation, which does not prevent the application of data protection regulations.

As stated in the Surveillance Guide: If they are real deactivated cameras or can be activated without excessive effort, the principles in force regarding personal data protection and the applicable sectoral regulations must be applied.

And in application of data protection regulations, even if the cameras are deactivated, if they are real, the informational device must be placed.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is the subject of said Regulation. In Article 4.2 of the GDPR, the concept of "processing" of personal data is defined.

The images generated by a system of cameras or camcorders are personal data, so their processing is subject to data protection regulations.

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It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Infringement

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, whether public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information specified in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video

surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. If the monitored space has several access points, the distinguishing sign of the monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

V

Obligations regarding video surveillance

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In accordance with the above, the processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

1.- Natural or legal persons, whether public or private, may establish a video surveillance system for the purpose of ensuring the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by less intrusive means for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with that which motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled as already indicated.

4.- Images of public roads may not be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Corps. In some cases, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security. That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. In no case will the use of surveillance practices beyond the environment subject to the installation be allowed, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

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It is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

5.- The images may be retained for a maximum period of one month, except in those cases where they must be kept to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The responsible party must maintain a record of activities of the treatments carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the treatments of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours. A security breach is understood as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4. The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in cases of low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the responsible party's situation regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

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Administrative Infraction

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the facts exposed violate what is established in Article 13 of the GDPR, which could constitute an infraction classified in Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of the data subjects under Articles 12 to 22; (...).”

For the purposes of the statute of limitations for infractions, the infraction indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infractions that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.”

VII

Sanction

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD provides the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or which they process:

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration.

2. When the controllers or processors listed in paragraph 1 commit any of the infractions referred to in Articles 72 to 74 of this law

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Organic, the competent data protection authority will issue a resolution sanctioning them with a warning. The resolution will also establish the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed.

The resolution will be notified to the data controller or processor, to the body to which it hierarchically depends, if applicable, and to the affected parties who had the status of interested parties, if applicable.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities.

For all these reasons, it is considered that the corresponding sanction is a warning.

VIII

Measures

Article 58.2 d) of the GDPR states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. In this case, the respondent must proceed, within one month from the receipt of this resolution, to:

- Place the information device in the video-surveilled areas or complete the information provided therein (at a minimum, it must identify the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions), locating this device in a sufficiently visible place, both in open and closed spaces.

- Make available to the affected parties the information referred to in Articles 13 and 14 of the GDPR.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

IX

Conclusion

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DIRECT the TOWN HALL OF CAMARGO, with NIF P3901600A, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a warning sanction.

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SECOND: TO ORDER the TOWN HALL OF CAMARGO to, pursuant to Article 58.2.d) of the GDPR, within one month, demonstrate compliance with the following measures:

- Place the information device in the video-surveilled areas or complete the information provided therein (at a minimum, it must identify the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions), locating this device in a sufficiently visible place, both in open and closed spaces.
- Make available to the affected parties the information referred to in Articles 13 and 14 of the GDPR.

THIRD: NOTIFY this resolution to the TOWN HALL OF CAMARGO.

FOURTH: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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